THE LETTERS OF THE RAMBAM

When Must You Die Rather Than Sin? The Letter on Martyrdom, Part 2

The Letters of the Rambam (2025)

Source: Igrot HaRambam: *Iggeret HaShmad* / *Ma'amar Kiddush Hashem*, continued

Shiur: Sixth class in the series on the Rambam's letters, given by Dayan Daniel Kada on Zoom, Tuesday 4 March 2025

These notes are based on the Sofer.ai transcript of the recording.

Recap

Last week: the question (should someone forced to declare Muhammad a prophet do so, or die?), the other rabbi's harsh answer (such people are heretics, gentiles, wicked, and even their prayers are sinful), and the Rambam's demolition of it: the distinction between **duress and willingness**; the duty to weigh words; **Moshe, Eliyahu, Yeshayahu** and the angel punished for speaking ill of Israel; **Rabbi Meir and Rabbi Eliezer** who outwardly complied; Babylon and the Greek period.

Part 1: The Last Criticisms

Irrelevant points! Why is he discussing Mecca, or how many people Muhammad killed?

"Why am I so harsh?"

Hashem is my witness: had he spoken even worse of **us**, I'd have accepted it and said, **"we have sinned,"** and judged him favourably, assumed he meant well…

Some academics use this line to argue **the Rambam himself had once outwardly renounced his faith**. "There's no proof at all, but it's interesting." More likely he speaks **collectively**, for the people he's defending.

What he can't stay silent about: the rabbi wrote that one who acknowledged Muhammad and then **prays**, even at home, **sins** and earns no reward.

Whatever is written in a book, true or not, spreads. That's why there are so many false opinions among people: once something is in a book, it's very hard to believe it untrue, and it becomes accepted. **I feared this letter would reach the simple** and they'd think: *I said I believe in Muhammad to save my life, so my prayers are worthless; why pray, why do any mitzvah?*

The wicked rewarded for tiny mitzvot

	The sin	The small deed	The reward
Achav	Had **Navot** killed for his vineyard (**הרצחת וגם ירשת?**)	**Humbled himself** and, the Sages say, **fasted** for two and a half hours	The punishment was **deferred** past his lifetime
Eglon, king of Moab	Oppressed Israel for **18 years**	When **Ehud** said **דבר אלהים לי אליך**, "a word of God for you," he **stood up** from his throne in respect (just before Ehud stabbed him)	**Ruth**, his daughter in tradition, became the ancestor of **David**, and of **Mashiach**
Nebuchadnezzar	Destroyed the Temple and killed multitudes	As scribe to **Merodach Baladan**, he saw a letter to Chizkiyahu greeting the **king before his God**, and **ran four steps** after the messenger to reverse the order	**Forty years** of sovereignty (Sanhedrin 96a)
Esav	On the day of the lentil stew, **five sins**: murder, adultery with a betrothed girl, denying resurrection, denying God, despising the birthright	Asked Yitzchak **how to tithe salt**, to impress his father, out of **honour for him**	His dynasty endures **until Mashiach**, who comes only once Esav's reward for honouring Yitzchak is paid

If Hashem rewards such people for one tiny mitzvah, how much more a Jew who acknowledged Muhammad under duress and **keeps doing mitzvot at home**?

No "bribe of mitzvot," in either direction

People imagine Rosh Hashanah as **scales**: more mitzvot than sins and you win. No. **Every** mitzvah is rewarded and **every** sin has its consequence: **לא ישא פנים ולא יקח שוחד**, Hashem takes **no bribe of mitzvot**. You can't say "knock this aveirah off against my mitzvot." **So one wrong act, even if it was wrong, can't cancel the reward of every mitzvah after it.**

Part 2: The Rambam's Answer: Five Sections

When I saw this letter, **which made my eyes sick**, I girded myself to gather **spices** from the early books and compound **a remedy** to heal this eye-sickness.

He sets out five sections:

§	Topic
1	**When must one give one's life?**
2	**Chillul Hashem**: what it is, and its consequences
3	The status of one **killed** for Hashem, and of one who **should have died but didn't**
4	How **this** persecution differs from earlier ones, and the answer about Muhammad
5	How to live if one must remain under the *shmad*

Section 1: When Must You Give Your Life?

The three cardinal sins

Idolatry, forbidden relations, murder: **יהרג ואל יעבור**, die rather than transgress, **always**:

- in **any period**, persecution or not;

- **in public or private**, even one-on-one ("commit adultery with this woman or I'll kill you," with no one else ever knowing);

- **whatever the coercer's motive**: to make you sin, or for his own benefit ("kill my enemy for me so I don't have to").

"Everyone agrees to this."

Every other mitzvah: a flowchart

Step 1: why is he forcing you?

- **For his own benefit → transgress and live**, even in **public** and even in a **time of persecution**.

- **Proof: Esther.** How could she go to **Achashverosh**, publicly, in a time of decree? (1) She was **passive**, **קרקע עולם**, "like the ground," which removes the cardinal-sin problem. (2) He acted **for his own pleasure**, not to make her sin.

- **To make you abandon your religion → Step 2: is it a time of *shmad*?**

- **Yes → give your life**, even **in private**, even for a **minor** mitzvah (e.g. "I want to see you, a Jew, wear **sha'atnez**").

- **No → Step 3: in front of ten Jews?**

- **In private** (fewer than ten) → **transgress**.

- **In public** (ten) → **give your life**.

	His own benefit	To make you sin, no *shmad*	To make you sin, during *shmad*
Three cardinal sins	Die	Die	Die
Other sins, private	Transgress	**Transgress**	**Die**
Other sins, public (10)	Transgress	**Die**	**Die**

Example: a gentile in front of your whole community on Shabbat, even in a time of persecution: "My garden must be mowed today, guests are coming!" **He wants his lawn mowed**, so mow it.

Note: the letter cites **neither the Mishneh Torah nor the Moreh**, because he hadn't written them yet. This is the very start of his career. He codifies all this later.

"People think you only have to give up your life for the three cardinal sins. True, but there are many more times you have to."

Who are "the ten"?

- **Jews**: men **or** women; ten Jewish women count.
- **Children** of educable age: a dispute.
- **Does the victim count himself?** He may die (so don't count him), or he may live (so do). The **Minchat Chinuch** (mitzvah 296, *Kiddush Hashem*) discusses it. "Who likes to go into these kinds of questions?"
- **Source for ten**: a **gezeirah shavah** from **בתוך בני ישראל** ("I shall be sanctified *among* the children of Israel"), via **תוך** in Korach and **עדה**, "congregation," with the **spies**: **עד מתי לעדה הרעה הזאת**, ten men.

Was the Holocaust a "time of *shmad*"?

The Rabbi asked: if a Nazi said **"shave your beard with a razor or I'll kill you,"** for no benefit of his own, just to make a Jew sin, is that a time of *shmad*? It was persecution of **extermination**, not mainly religious.

- **Doron:** the **Purim** decree was extermination, and it's **still considered a time of shmad**. "**100% correct.** Thank you." So the Holocaust would be too, and one would have to die rather than shave, even one-on-one. "Wow."

- **Robert:** does it all apply if the coercer is a **Jew**? Yes, the same halachot.

"Passive" isn't the same

The commentators note the Rambam requires martyrdom **only for an active transgression**. "**If we see you wearing tefillin, we'll kill you**" asks only that you *refrain*, which is passive, so you needn't die. (**Brit milah** is different; there's a discussion.)

Why does a time of *shmad* make it stricter?

Robert asked. The source is the Gemara in **Sanhedrin**; no explicit rationale, "but it's self-explanatory." In a time of national persecution, when the nations as a whole are trying to bring us down, **that's when we must stand stronger**, even unto death.

Chanah and her seven sons

A participant asked whether **Chanah** was right to let her young sons die. From all accounts **the children chose** themselves (as in the **Kinot** of Tisha B'Av).

The conversos?

"In those times, yes, they should have given their lives." But **they didn't, and they're still Jews**: "That's the mistake people make. They think if you were meant to die and didn't, you're out. The Rambam says: **big mistake.**" That's **Section 3**.

Section 2 (beginning): Chillul Hashem

Two kinds apply to **everyone**, and two more to **sages and leaders**.

For everyone

1. **A sin with no benefit, done because you "don't care"**: not desire, not gain. **Swearing falsely** ("I didn't eat today" when you did): pure disregard. Done **in public** (ten Jews), it is **chillul Hashem**. A modern example: someone leaving observance who sins **to make a point**.
2. **The opposite, *kiddush Hashem***: doing a mitzvah **for no reason but that Hashem commanded it**, publicly, is the greatest sanctification.
3. **Actions that *look* like sin**, though they aren't: where the onlooker will clearly conclude you're sinning. **This is the root of *mar'it ayin*.**

For sages and public figures: two further kinds, next week.

Summary

1. The Rambam is harsh **because the rabbi's letter was written and spreading**, and would make the simple think their mitzvot are worthless.
2. **Achav, Eglon, Nebuchadnezzar, Esav**: the wicked were rewarded for tiny deeds. **No bribe of mitzvot**: every act counts separately, so a coerced declaration can't wipe out one's prayers.
3. **When to die:**
4. **Three cardinal sins**: always.
5. **Other sins**: if the coercer wants **his own benefit**, transgress. If he wants **you to sin**: in a **time of shmad**, die even in private; otherwise, die **only in public (ten Jews)**.
6. Only for **active** transgressions.
7. **Ten** = Jewish adults (men or women); children and the victim himself are debated (Minchat Chinuch 296).
8. A **decree of extermination** (Purim, and so the Holocaust) counts as a time of *shmad*.
9. **Chillul Hashem** for everyone: sinning out of sheer disregard, publicly; and conduct that **looks** like sin (*mar'it ayin*).

Coming Up

Next week: Chillul Hashem for **sages and leaders**; what happens to one **killed** for Hashem, and to one who **should have died but didn't** (Section 3); how the Rambam's persecution was **different**, and his

answer about Muhammad (Section 4); and how to live under *shmad* (Section 5). Then the next letter. "Surprisingly, for once we're **ahead** of schedule."

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